

district on the application of the holder of the licence to be used only as public gardens, picture galleries, exhibitions, places of public or private entertainment, railway refreshment rooms, bonâ fide restaurants or eating houses, or for any other purpose to which the holding of a licence is merely auxiliary, such rate, not less than one-third of that charged in other cases, as the justices think proper under the circumstances.

SCHEDULE II.

SCALE OF DEDUCTIONS.

Section 3.

A person whose unexpired } term does not exceed - }		1 year may deduct } a sum equal to - }	100 per cent. of the charge.	
	2 years		88	" "
	3 "		82	" "
	4 "		76	" "
	5 "		70	" "
	6 "		65	" "
	7 "		60	" "
	8 "		55	" "
	9 "		50	" "
	10 "		45	" "
	11 "		41	" "
	12 "		37	" "
	13 "		33	" "
	14 "		29	" "
	15 "		25	" "
	16 "		23	" "
	17 "		21	" "
	18 "		19	" "
	19 "		17	" "
	20 "		15	" "
	21 "		14	" "
	22 "		13	" "
	23 "		12	" "
	24 "		11	" "
	25 "		10	" "
Exceeds 25 but "does not exceed }	30 years		7	" "
30 "	35 "		6	" "
35 "	40 "		5	" "
40 "	45 "		4	" "
45 "	50 "		3	" "
50 "	55 "		2	" "
55 "	60 "		1	" "

But the amount deducted shall in no case exceed half the rent.

CHAPTER 24.

An Act to provide for the regulation of Wireless
Telegraphy. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Licences for
wireless tele-
graphy.

1.—(1) A person shall not establish any wireless telegraph station or instal or work any apparatus for wireless telegraphy in any place or on board any British ship, except under and in accordance with a licence granted in that behalf by the Postmaster-General.

(2) Every such licence shall be in such form and for such period as the Postmaster-General may determine and shall contain the terms, conditions and restrictions on and subject to which the licence is granted, and any such licence may include two or more stations, places or ships.

(3) If any person establishes a wireless telegraph station without a licence in that behalf, or installs or works any apparatus for wireless telegraphy without a licence in that behalf, he shall be guilty of a misdemeanour and be liable, on conviction under the Summary Jurisdiction Acts, to a penalty not exceeding ten pounds and, on conviction on indictment, to a fine not exceeding one hundred pounds, or to imprisonment, with or without hard labour, for a term not exceeding twelve months, and in either case be liable to forfeit any apparatus for wireless telegraphy installed or worked without a licence, but no proceedings shall be taken against any person under this Act except by order of the Postmaster-General, the Admiralty, the Army Council or the Board of Trade.

(4) If a justice of the peace is satisfied by information on oath that there is reasonable ground for supposing that a wireless telegraph station has been established without a licence in that behalf, or that any apparatus for wireless telegraphy has been installed or worked in any place or on board any ship within his jurisdiction without a licence in that behalf, he may grant a search warrant to any police officer or any officer appointed in that behalf by the Postmaster-General, the Admiralty, the Army Council or the Board of Trade and named in the warrant, and a warrant so granted shall authorise the officer named therein to enter and inspect the station, place or ship and to seize any apparatus which appears to him to be used or intended to be used for wireless telegraphy therein.

57 & 58 Vict.
c. 60.

(5) Sections six hundred and eighty-four, six hundred and eighty-five and six hundred and eighty-six of the Merchant Shipping Act, 1894 (which relate to the jurisdiction of courts and justices), and section six hundred and ninety-three of the same Act (which relates to distress for sums ordered to be paid by masters and owners of ships), shall apply to the jurisdiction of courts and justices in respect of ships and to distress under this Act.

(6) The Postmaster-General may make regulations for prescribing the form and manner in which applications for licences under this Act are to be made and, with the consent of the Treasury, the fees payable on the grant of any such licence.

• (7) The expression "wireless telegraphy," means any system of communication by telegraph as defined in the Telegraph Acts, 1863 to 1904, without the aid of any wire connecting the points from and at which the messages or other communications are sent

and received: Provided that nothing in this Act shall prevent any person from making or using electrical apparatus for actuating machinery or for any purpose other than the transmission of messages.

2.—(1) Where the applicant for a licence proves to the satisfaction of the Postmaster-General that the sole object of obtaining the licence is to enable him to conduct experiments in wireless telegraphy, a licence for that purpose shall be granted, subject to such special terms, conditions and restrictions as the Postmaster-General may think proper, but shall not be subject to any rent or royalty. Licences for experimental purposes, &c.

(2) Where an applicant for a licence satisfies the Postmaster-General that a wireless telegraph station is to be used solely for the transmission of telegrams, which are within the first or second exception from the exclusive privilege of transmitting telegrams conferred upon the Postmaster-General by the Telegraph Act, 1869, a licence for that purpose, if granted, shall not be subject to any rent or royalty. 32 & 33 Vict. c. 37.

(3) It shall be lawful for the Postmaster-General, due regard being had to the maintenance and exercise of effective control over wireless telegraphy, to grant special licences at reduced terms for the establishment and working, of wireless telegraph stations, to be used exclusively for the transmission within the United Kingdom of news to public registered newspapers. A schedule of all reduced rents or royalties imposed by any special licences shall be laid before both Houses of Parliament within fourteen days of the commencement of the session next succeeding the grant of any such licences.

3.—(1) This Act may be cited as the Wireless Telegraphy Act, 1904, and may be cited with the Telegraph Acts, 1863 to 1904. Short title and extent.

(2) This Act shall extend to the whole of the British Islands and to all British ships in the territorial waters abutting on the coast of the British Islands, and the Royal Courts of the Channel Islands shall register this Act accordingly.

(3) His Majesty in Council may order that this Act shall, subject to any conditions, exceptions and qualifications contained in the order, apply during the continuance of the order to British ships whilst on the high seas.

(4) A person shall not work any apparatus for wireless telegraphy installed on a foreign ship whilst that ship is in territorial waters, otherwise than in accordance with regulations made in that behalf by the Postmaster-General, and the Postmaster-General may, by any such regulations, impose penalties recoverable summarily for the breach of any such regulations, not exceeding ten pounds for each offence, and may provide for the forfeiture on any such breach of any apparatus for wireless telegraphy installed or worked on such ship. Save as aforesaid, nothing in this Act shall apply to the working of apparatus for wireless telegraphy installed on any foreign ship.

Application of
Act to Scot-
land.

4. In the application of this Act to Scotland the expression "misdemeanour" means crime and offence.

Application of
Act to Chan-
nel Islands and
Isle of Man.

5. In the application of this Act to the Channel Islands and the Isle of Man—

- (1) The lieutenant governor of the Island of Jersey or the Island of Guernsey and the governor, lieutenant governor or deputy governor of the Isle of Man, as the case may require, shall be substituted for the Board of Trade:
- (2) Offences may be prosecuted, fines recovered, proceedings taken and search warrants issued in such courts and in such manner as may for the time being be provided in the Channel Islands and the Isle of Man by law, or, if no express provision is made, then in and before the courts and in the manner in which the like offences, fines, proceedings and warrants may be prosecuted, recovered, taken or issued therein by law, or as near thereto as circumstances admit, and the bailiff or his lieutenant, or any jurat of the Royal Court in the Island of Jersey or the Island of Guernsey, and the judge or any jurat of the Court of Alderney, and the high bailiff or two justices of the peace in the Isle of Man, shall respectively be substituted for a justice of the peace.

Duration of
Act.

6. This Act shall continue in force until the thirty-first day of July nineteen hundred and six and no longer, unless Parliament otherwise determines.

CHAPTER 25.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Increased •
duties on
certain kinds
of tobacco.
61 & 62 Vict.
c. 27.

1. The duties of Customs payable under section one of the Isle of Man (Customs) Act, 1898, on manufactured tobacco shall as from the twenty-ninth day of April, nineteen hundred and four, be increased in the case of cigars by sixpence per pound and in the case of cigarettes by one shilling per pound.

Continuance of
additional
duties on
tobacco, tea,
spirits, ale and
beer.
63 & 64 Vict.
c. 31.

2. The additional duties of Customs on tobacco, tea and spirits removed or imported into the Isle of Man, imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man, imposed by the second paragraph of section two of that Act, shall continue to be charged, levied and paid as from the first day of August,